Text 1

第 1 段

It's a rough world out there. Step outside and you could break a leg slipping on your doormat. Light up the stove and you could burn down the house. Luckily, if the doormat or stove failed to warn of coming disaster, a successful lawsuit might compensate you for your troubles. Or so the thinking has gone since the early 1980s, when juries began holding more companies liable for their customers' misfortunes.

直译：外面的世界充满风险。走出门去，你可能在门垫上滑倒，摔断一条腿。点燃炉灶，你可能把房子烧掉。幸运的是，如果门垫或炉灶没有预先警告即将发生的灾难，一场胜诉可能会补偿你遭遇的麻烦。至少自 20 世纪 80 年代初以来，人们一直是这样想的；那时，陪审团开始要求更多公司对顾客遭遇的不幸承担法律责任。

第 2 段

Feeling threatened, companies responded by writing ever longer warning labels, trying to anticipate every possible accident. Today, stepladders carry labels several inches long that warn, among other things, that you might—surprise!—fall off. The label on a child's Batman cape cautions that the toy "does not enable user to fly".

直译：公司感到受到威胁，于是用越来越长的警告标签作出回应，试图预见每一种可能的事故。如今，折梯附有几英寸长的标签，其中还警告你可能 —— 真让人意外！—— 从梯子上掉下来。儿童蝙蝠侠斗篷的标签则告诫说，这个玩具 " 不能使使用者飞起来 "。

第 3 段

While warnings are often appropriate and necessary—the dangers of drug interactions, for example—and many are required by state or federal regulations, it isn't clear that they actually protect the manufacturers and sellers from liability if a customer is injured. About 50 percent of the companies lose when injured customers take them to court.

直译：虽然警告往往恰当且必要，例如对药物相互作用危险的警告，而且许多警告也是州或联邦法规所要求的，但如果顾客受伤，这些警告是否真的能保护生产者和销售者免于承担责任，并不清楚。当受伤顾客把公司告上法庭时，大约 50% 的公司会败诉。

第 4 段

Now the tide appears to be turning. As personal injury claims continue as before, some courts are beginning to side with defendants, especially in cases where a warning label probably wouldn't have changed anything. In May, Julie Nimmons, president of Schutt Sports in Illinois, successfully fought a lawsuit involving a football player who was paralyzed in a game while wearing a Schutt helmet. "We're really sorry he has become paralyzed, but helmets aren't designed to prevent those kinds of injuries, " says Nimmons. The jury agreed that the nature of the game, not the helmet, was the reason for the athlete's injury.

直译：现在，形势似乎正在转变。在人身伤害索赔一如既往地继续时，一些法院开始站在被告一边，尤其是在警告标签很可能也无法改变结果的案件中。5 月，伊利诺伊州舒特体育用品公司的总裁朱莉 · 尼蒙斯成功应对了一场诉讼：一名橄榄球运动员在比赛中戴着舒特公司的头盔，却瘫痪了。尼蒙斯说：" 他瘫痪了，我们确实很难过，但头盔在设计上就不是用来防止那类伤害的。" 陪审团认定，造成这名运动员受伤的是这项运动本身的性质，而不是头盔。

第 5 段

At the same time, the American Law Institute—a group of judges, lawyers, and academics whose recommendations carry substantial weight—issued new guidelines for tort law stating that companies need not warn customers of obvious dangers or bombard them with a lengthy list of possible ones. “Important information can get buried in a sea of trivialities, ” says a law professor at Cornell Law School who helped draft the new guidelines. If the moderate end of the legal community has its way, the information on products might actually be provided for the benefit of customers and not as protection against legal liability.

直译：与此同时，美国法学会 —— 一个由法官、律师和学者组成、其建议具有相当影响力的团体 —— 发布了新的侵权法指导原则，指出公司不必就明显的危险警告顾客，也不必用冗长的潜在危险清单对他们进行信息轰炸。一位参与起草新原则的康奈尔大学法学院教授说：“ 重要信息可能被淹没在无数琐碎细节中。” 如果法律界温和派的主张得以实现，产品信息就可能真正是为了顾客的利益而提供，而不是为了规避法律责任。

篇章简析

主旨：过度警告未必保护消费者，新指导原则倾向于让警示回归实用。结构：企业责任扩张 — 警告泛滥 — 实际效果存疑 — 判例与规则转向。第 3 段 While 表让步；末段 if ... has its way 是条件，不能译为改革已经全部落实。

Text 2

第 1 段

In the first year or so of Web business, most of the action has revolved around efforts to tap the consumer market. More recently, as the Web proved to be more than a fashion, companies have started to buy and sell products and services with one another. Such business to business sales make sense because business people typically know what product they're looking for.

直译：在网络商业出现的最初一年左右，大多数活动都围绕开发消费者市场的努力展开。近来，随着网络被证明不只是一时风尚，公司开始相互买卖产品和服务。这种企业对企业的销售是有道理的，因为商业人士通常知道自己正在寻找什么产品。

第 2 段

Nonetheless, many companies still hesitate to use the Web because of doubts about its reliability. "Businesses need to feel they can trust the pathway between them and the supplier," says senior analyst Blane Erwin of Forrester Research. Some companies are limiting the risk by conducting online transactions only with established business partners who are given access to the company's private intranet.

直译：然而，由于怀疑网络的可靠性，许多公司仍然犹豫是否使用它。福雷斯特研究公司的高级分析师布莱恩·欧文说："企业需要确信，自己与供应商之间的通道是可以信任的。"一些公司只同已有合作关系的商业伙伴开展网上交易，以限制风险；这些伙伴获准进入公司的内部网络。

第 3 段

Another major shift in the model for Internet commerce concerns the technology available for marketing. Until recently, Internet marketing activities have focused on strategies to "pull" customers into sites. In the past year, however, software companies have developed tools that allow companies to "push" information directly out to consumers, transmitting marketing messages directly to targeted customers. Most notably, the Pointcast Network uses a screen saver to deliver a continually updated stream of news and advertisements to subscribers' computer monitors. Subscribers can customize the information they want to receive and proceed directly to a company's Web site. Companies such as Virtual Vineyards are already starting to use similar technologies to push messages to customers about special sales, product offerings, or other events. But push technology has earned the contempt of many Web users. Online culture thinks highly of the notion that the information flowing onto the screen comes there by specific request. Once commercial promotion begins to fill the screen uninvited, the distinction between the Web and television fades. That's a prospect that horrifies Net purists.

直译：互联网商业模式的另一重大变化，涉及可以用于营销的技术。直到不久前，互联网营销活动一直集中在把顾客"拉"进网站的策略上。然而，在过去一年中，软件公司开发出工具，使企业能够直接向消费者"推送"信息，把营销消息直接传给目标顾客。最引人注目的是，Pointcast 网络利用屏幕保护程序，向订阅用户的电脑显示器不断提供更新的新闻和广告。用户可以按自己的需要定制接收的信息，并直接进入某家企业的网站。Virtual Vineyards 等公司已经开始使用类似技术，把有关特卖、产品供应或其他活动的信息推送给顾客。但推送技术招致了许多网络用户的鄙视。网络文化高度推崇这样一种观念：流入屏幕的信息应当是用户明确索取的。一旦商业宣传不请自来，开始充满屏幕，网络与电视之间的区别就会消退。这是令网络纯粹主义者感到恐惧的一种前景。

第 4 段

But it is hardly inevitable that companies on the Web will need to resort to push strategies to make money. The examples of Virtual Vineyards, Amazon.com, and other pioneers show that a Web site selling the right kind of products with the right mix of interactivity, hospitality, and security will attract online customers. And the cost of computing power continues to free fall, which is a good sign for any enterprise setting up shop in silicon. People looking back 5 or 10 years from now may well wonder why so few companies took the online plunge.

直译：但是，网上公司要赚钱，并非就必然需要诉诸推送策略。Virtual Vineyards、Amazon.com 及其他先行者的例子表明，一个销售适当产品，并把互动性、友好服务与安全性恰当结合的网站，能够吸引网上顾客。而计算能力的成本继续急剧下降，这对任何打算在网络世界开店的企业都是好兆头。五年或十年后回首今天的人，很可能会惊讶：为什么当时只有那么少的公司毅然投身网络经营。

篇章简析

主旨：网络商业正转向企业交易与信息推送，但成功仍取决于产品、互动和安全等条件。第 3 段解释 pull 与 push 并指出后者的争议；第 4 段否定 “ 盈利必须推送 ” 的推论。more than a fashion 表 “ 不只是一时风尚 ”。

Text 3

第 1 段

An invisible border divides those arguing for computers in the classroom on the behalf of students' career prospects and those arguing for computers in the classroom for broader reasons of radical educational reform. Very few writers on the subject have explored this distinction—indeed, contradiction—which goes to the heart of what is wrong with the campaign to put computers in the classroom.

直译：一条看不见的界线，把两类主张将电脑引入课堂的人分开了：一类为了学生的就业前景，另一类则出于彻底改革教育这一更广泛的理由。就这一话题写作的人，很少探讨这种区别 —— 实际上是矛盾 —— 而这种矛盾直指“让电脑进入课堂”运动的问题核心。

第 2 段

An education that aims at getting a student a certain kind of job is a technical education, justified for reasons radically different from why education is universally required by law. It is not simply to raise everyone's job prospects that all children are legally required to attend school into their teens. Rather, we have a certain conception of the American citizen, a character who is incomplete if he cannot competently assess how his livelihood and happiness are affected by things outside of himself. But this was not always the case; before it was legally required for all children to attend school until a certain age, it was widely accepted that some were just not equipped by nature to pursue this kind of education. With optimism characteristic of all industrialized countries, we came to accept that everyone is fit to be educated.

直译：旨在让学生获得某一类工作的教育，是一种技术教育；使它成立的理由，与法律为什么普遍要求人们接受教育的理由根本不同。法律要求所有儿童在十几岁时仍必须上学，并不只是为了改善每个人的就业前景。相反，我们对美国公民有某种理解：如果一个人不能有能力评估自身之外的事物如何影响自己的生计和幸福，那么他作为公民就是不完整的。但情况并非始终如此；在法律要求所有儿童上学到一定年龄以前，人们普遍认为，有些人天生不具备接受这种教育的条件。带着所有工业化国家所特有的乐观态度，我们逐渐接受了这样一种看法：每个人都适合接受教育。

第 3 段

Computer-education advocates forsake this optimistic notion for a pessimism that betrays their otherwise cheery outlook. Banking on the confusion between educational and vocational reasons for bringing computers into schools, computer-ed advocates often emphasize the job prospects of graduates over their educational achievement.

直译：计算机教育的提倡者放弃了这种乐观观念，转而采取一种悲观主义，这与他们在其他方面的乐观展望背道而驰。他们利用把电脑引入学校的教育理由与职业理由之间的混淆，常常强调毕业生的就业前景，而不是他们的教育成就。

第 4 段

There are some good arguments for a technical education given the right kind of student. Many European schools introduce the concept of professional training early on in order to make sure children are properly equipped for the professions they want to join. It is, however, presumptuous to insist that there will only be so many jobs for so many scientists, so many businessmen, so many accountants. Besides, this is unlikely to produce the needed number of every kind of professional in a country as large as ours and where the economy is spread over so many states and involves so many international corporations.

直译：对于适合的学生，支持技术教育确实有一些充分理由。许多欧洲学校很早就引入职业培训观念，以确保孩子们为希望从事的职业作好准备。然而，坚持认为科学家、商人和会计师各自只能对应某个确定数量的岗位，是武断的。此外，在我们这样幅员辽阔、经济活动遍及众多州并涉及众多跨国公司的国家，这种做法也不大可能恰好培养出所需要的各类专业人才。

第 5 段

But, for a small group of students, professional training might be the way to go since well-developed skills, all other factors being equal, can be the difference between having a job and not. Of course, the basics of using any computer these days are very simple. It does not take a lifelong acquaintance to pick up various software programs. If one wanted to become a computer engineer, that is, of course, an entirely different story. Basic computer skills take at the very longest a couple of months to learn. In any case, basic computer skills are only complementary to the host of real skills that are necessary to becoming any kind of professional. It should be observed, of course, that no school, vocational or not, is helped by a confusion over its purpose.

直译：但对少数学生而言，职业培训可能是应走的路，因为在其他条件相同的情况下，成熟的技能可能决定一个人有没有工作。当然，如今使用任何电脑的基本操作都非常简单。学会各种软件，并不需要一辈子的接触。如果想成为计算机工程师，那当然完全是另一回事。基本电脑技能最多几个月就能学会。无论如何，基本电脑技能只是对大量真正技能的补充，而后者才是成为任何一种专业人员所必需的。当然，应当指出，无论是不是职业学校，任何学校都不会从办学目的的混淆中获益。

篇章简析

主旨：应区分公民教育与职业培训，不能把电脑操作或就业准备等同于教育本身。结构：界定矛盾 — 解释普及教育目的 — 批评偷换理由 — 承认培训的有限价值。末段 all other factors being equal 是独立主格，表示“其他条件相同”。

Text 4

第 1 段

When a Scottish research team startled the world by revealing 3 months ago that it had cloned an adult sheep, President Clinton moved swiftly. Declaring that he was opposed to using this unusual animal husbandry technique to clone humans, he ordered that federal funds not be used for such an experiment—although no one had proposed to do so—and asked an independent panel of experts chaired by Princeton President Harold Shapiro to report back to the White House in 90 days with recommendations for a national policy on human cloning. That group—the National Bioethics Advisory Commission (NBAC)—has been working feverishly to put its wisdom on paper, and at a meeting on 17 May, members agreed on a near final draft of their recommendations.

直译：三个月前，当一个苏格兰研究团队宣布他们克隆了一只成年绵羊、震惊世界时，克林顿总统迅速采取了行动。他声明反对把这种不寻常的畜牧技术用于克隆人，并下令不得将联邦资金用于此类实验 —— 尽管当时还没有人提出要这样做。他还要求一个由普林斯顿大学校长哈罗德 · 夏皮罗主持的独立专家小组，在 90 天内向白宫提交关于人类克隆国家政策的建议。这个小组，即国家生物伦理咨询委员会，一直在紧张地把集体意见写成文件；在 5 月 17 日的一次会议上，成员们就一份接近定稿的建议草案达成了一致。

第 2 段

NBAC will ask that Clinton's 90-day ban on federal funds for human cloning be extended indefinitely, and possibly that it be made law. But NBAC members are planning to word the recommendation narrowly to avoid new restrictions on research that involves the cloning of human DNA or cells—routine in molecular biology. The panel has not yet reached agreement on a crucial question, however, whether to recommend legislation that would make it a crime for private funding to be used for human cloning.

直译：该委员会将要求，把克林顿关于不得用联邦资金开展人类克隆的 90 天禁令无限期延长，并可能要求把它制定为法律。但委员会成员计划把建议的措辞限定在狭窄范围内，以免给涉及人类 DNA 或细胞克隆的研究增添限制，因为这些都是分子生物学中的常规工作。不过，小组尚未就一个关键问题达成一致：是否建议立法，把利用私人资金进行人类克隆定为犯罪。

第 3 段

In a draft preface to the recommendations, discussed at the 17 May meeting, Shapiro suggested that the panel had found a broad consensus that it would be "morally unacceptable to attempt to create a human child by adult nuclear cloning." Shapiro explained during the meeting that the moral doubt stems mainly from fears about the risk to the health of the child. The panel then informally accepted several general conclusions, although some details have not been settled.

直译：在 5 月 17 日会议讨论的建议书序言草案中，夏皮罗提出，小组已形成广泛共识：试图通过成年个体的细胞核克隆来制造一个人类孩子，在道德上是不可接受的。夏皮罗在会上解释说，道德上的疑虑主要源自对孩子健康风险的担忧。随后，小组非正式地接受了若干总体结论，尽管一些细节尚未确定。

第 4 段

NBAC plans to call for a continued ban on federal government funding for any attempt to clone body cell nuclei to create a child. Because current federal law already forbids the use of federal funds to create embryos (the earliest stage of human offspring before birth) for research or to knowingly endanger an embryo's life, NBAC will remain silent on embryo research.

直译：委员会计划呼吁继续禁止联邦政府资助任何通过克隆体细胞细胞核来制造孩子的尝试。由于现行联邦法律已经禁止用联邦资金制造用于研究的胚胎 —— 即人类后代出生前的最早阶段 —— 或明知会危及胚胎生命而仍这样做，所以委员会将不对胚胎研究发表意见。

第 5 段

NBAC members also indicated that they would appeal to privately funded researchers and clinics not to try to clone humans by body cell nuclear transfer. But they were divided on whether to go further by calling for a federal law that would impose a complete ban on human cloning. Shapiro and most members favored an appeal for such legislation, but in a phone interview, he said this issue was still "up in the air".

直译：委员会成员还表示，他们将呼吁由私人出资的研究人员和诊所，不要试图通过体细胞核移植克隆人。但他们对于是否进一步呼吁制定联邦法律、全面禁止克隆人，存在分歧。夏皮罗和大多数成员赞成呼吁这样的立法，但他在电话采访中说，这个问题仍然 " 悬而未决 "。

篇章简析

主旨：报道伦理委员会对人类克隆的政策建议，重点区分公共资金禁令与全面刑事禁令。结构：事件背景 — 建议范围 — 伦理理由 — 已有法律边界 — 私人资金争议。will ask、plans、not yet 等限定必须保留，不能把建议译成已生效法律。本文为历史报道。

整理说明：依据所附年度试卷提取 Text 1–Text 4；每段英文后接中文直译。已修复明显断词、粘连、错字和标点损坏。文中数据、事件及观点均置于原文章的历史语境中理解。篇章简析为本次整理所加。